

SYNTHETIC TRAINING RECORD — NOT FILED — ALL NAMES AND FACTS ARE
FICTIONAL

UNITED STATES DISTRICT COURT EASTERN DISTRICT OF VIRGINIA RICHMOND
DIVISION

ASTERGLEN FREIGHT SOFTWARE, INC., Plaintiff,

v.

Civil Action No. SYN-25-0117

COPPER KESTREL LOGISTICS, LLC, and MERIDIAN SILT HOLDINGS, LLC, Defendants.

COMPLAINT AND JURY DEMAND

Plaintiff Asterglen Freight Software, Inc. ("Asterglen"), by fictional counsel, alleges on knowledge as to itself and on information and belief as to others:

Nature of the action

1. Asterglen licenses BeaconRoute, a freight-routing platform. Copper Kestrel Logistics, LLC ("Copper Kestrel") bought a limited pilot license for twelve named dispatch terminals.
2. Copper Kestrel, assisted by Meridian Silt Holdings, LLC ("Meridian Silt"), deployed the platform to additional terminals after Asterglen declined a written expansion request.
3. Count I seeks contract damages from Copper Kestrel. Count II seeks damages from Meridian Silt for intentional interference with the pilot license. Asterglen demands a jury on triable issues.

Parties, jurisdiction, and venue

4. Asterglen is a Virginia corporation with its principal place of business in Richmond, Virginia.
5. Copper Kestrel is a North Carolina limited liability company. Its sole member is a natural person domiciled in North Carolina. Copper Kestrel has its principal operating office in Raleigh, North Carolina.
6. Meridian Silt is a Maryland limited liability company. Its sole member is a natural person domiciled in Maryland. Meridian Silt has its principal operating office in Baltimore, Maryland.
7. Complete diversity exists. The amount in controversy exceeds \$75,000 exclusive of interest and costs. This Court has subject-matter jurisdiction under 28 U.S.C. § 1332(a).
8. Venue is alleged to be proper in this district because the contract identifies Richmond as the service location, Asterglen provisioned access here, and a substantial part of the alleged events occurred here. Defendants reserve all responses.

The pilot license

9. Asterglen and Copper Kestrel executed the Pilot License on April 15, 2024. A true synthetic copy was attached to the complaint as Exhibit A in this authored record but is not separately included in the training appendix.
10. Section 3.1 permitted use at twelve dispatch terminals identified on Schedule 1. Section 3.4 required a signed change order before adding a terminal.

11. Section 9.2 stated: "Before either party terminates this Agreement for material breach or seeks breach damages, that party must give written notice describing the breach and allow fifteen calendar days to cure."
12. Section 11.3 stated that amendments and waivers must be in a writing signed by both parties.
13. The pilot term ran from April 15 through October 15, 2024. The license fee was \$12,000 per named terminal. A change order would use the same per-terminal fee unless the parties agreed otherwise.

Expansion request and deployment

14. On June 3, 2024, Copper Kestrel emailed a proposed change order for twenty-nine additional terminals.
15. On June 10, 2024, Asterglen responded that it could not approve expansion until completion of a load test. No signed change order followed.
16. On July 1, 2024, Copper Kestrel used a staging credential to deploy BeaconRoute at the twenty-nine additional terminals, for forty-one total terminals.
17. Meridian Silt provided integration services for the scale-out. Its project log quoted Section 3.4 and recorded that "Asterglen has not signed the expansion paper."
18. On July 8, 2024, personnel for all three companies held a video call. Asterglen's project manager said the load appeared stable but lacked authority to amend the agreement. No signed writing resulted.

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19. Asterglen's July 18 audit detected forty-one active terminal identifiers.
20. On July 22, 2024, Asterglen disabled Copper Kestrel's staging credential and sent an email stating that the expanded deployment was unauthorized and that the pilot was terminated immediately.
21. The July 22 email demanded \$348,000 in additional license fees and \$132,000 in response costs. It did not offer a fifteen-day cure period.
22. Copper Kestrel disputed termination and asserted that the July 8 call authorized expansion. It did not pay Asterglen's demand.
23. Meridian Silt continued migration work for three days after the credential was disabled, using configuration files already delivered to Copper Kestrel.

Count I — breach of contract against Copper Kestrel

24. Asterglen repeats paragraphs 1–23.
25. The Pilot License was a valid contract. Asterglen alleges it performed its obligations until the July 22 termination.
26. Copper Kestrel allegedly breached Sections 3.1 and 3.4 by deploying the software beyond the twelve named terminals without a signed change order.
27. Asterglen alleges direct damages of \$348,000 and consequential response costs of \$132,000, for a total of \$480,000, subject to proof.

- 28. Asterglen alleges that Copper Kestrel repudiated the agreement by refusing to pay for the additional deployments.
- 29. Asterglen seeks judgment against Copper Kestrel for \$480,000, pre- and post-judgment interest as permitted by law, and taxable costs.

Count II — intentional interference against Meridian Silt

- 30. Asterglen repeats paragraphs 1–23.
- 31. Meridian Silt knew of the Pilot License and its signed-change-order requirement. Its own project log quoted Section 3.4.
- 32. Asterglen alleges Meridian Silt intentionally encouraged and implemented expanded use despite that knowledge.
- 33. Asterglen alleges Meridian Silt used improper means by directing Copper Kestrel to reuse a staging credential intended for testing rather than production.
- 34. Asterglen alleges Meridian Silt's conduct caused Copper Kestrel's nonperformance and caused Asterglen to spend \$132,000 on containment and forensic review.
- 35. Asterglen seeks \$360,000 in compensatory damages from Meridian Silt, avoiding duplicate recovery of any amount awarded on Count I, plus interest and taxable costs.

Requested relief

Asterglen requests that the Court:

- A. enter judgment against Copper Kestrel on Count I for \$480,000, subject to proof;
- B. enter judgment against Meridian Silt on Count II for \$360,000, subject to proof and without duplicate recovery;
- C. award lawful pre- and post-judgment interest and taxable costs;
- D. grant other relief proved and legally available; and
- E. set triable factual disputes for jury trial.

Jury demand

Asterglen demands a jury trial on all issues so triable.

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Respectfully submitted on March 3, 2025.

ASTERGLEN FREIGHT SOFTWARE, INC.

By fictional counsel for this synthetic exercise only:

/s/ Morgan Example

Morgan Example (fictional) Example Advocacy Studio 100 Training Square Richmond,
Virginia 23219 synthetic-counsel (at) example.invalid

No person or firm named on this page is real or appearing in any court.

Certificate of service

This synthetic certificate states that on March 3, 2025, the authored complaint was served with synthetic process by the exercise's assumed method. It is not evidence of real service.

/s/ Morgan Example

Exhibit A index (synthetic; exhibit not reproduced)

Pilot License dated April 15, 2024:

- Section 3.1: twelve named terminals.
- Section 3.4: signed change order required before expansion.
- Section 9.2: written notice and fifteen-calendar-day cure before termination or breach damages.
- Section 11.3: signed writing required for amendments and waivers.
- Schedule 1: twelve fictional terminal identifiers.

The complete fictional agreement is intentionally omitted because the appeal turns on the text quoted in the pleadings and the district order, not on an unanchored extra-record asset.